

25STCV24849 25STCV24849

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Case Number: 25STCV24849 Hearing Date: August 24, 2026 Dept: 617

Dept.

617

Date:

8-24-26

Case

#: 25STCV24849

Trial

Date: None Set

COMPEL ARBITRATION

MOVING

PARTY: Defendants Rollins, Inc., Orkin LLC, Jorge Caballero, Sherwin Aguila,
and Daniel Montes

RESPONDING

PARTY: Plaintiff, Arthur Lujan

RELIEF

REQUESTED

Motion

to Compel Arbitration and Stay Proceedings

SUMMARY

OF ACTION

Plaintiff

was formerly employed as a pest control technician for Defendants Orkin LLC and Rollins, Inc. Plaintiff alleges that after he proposed reducing his total overtime hours to take care of his son, Defendants pressured him to resign. Plaintiff further claims that Defendants fostered a hostile work environment where his supervisors, Defendants Jorge Caballero and Sherwin Aguila, circulated a photo of his brother, who is homosexual, "in a mocking and harassing manner" and made homophobic and derogatory remarks toward employees. On October 29, 2025, Plaintiff filed a First Amended Complaint asserting numerous claims under the Fair Employment and Housing Act (FEHA) and Labor Code. Plaintiff additionally brings a PAGA claim. Plaintiff's branch manager, Daniel Montes, is also named as a defendant.

RULING: Granted.

Evidentiary

Objections: Overruled.

Defendants

move to compel arbitration of Plaintiff's non-PAGA claims under the Agreement to Arbitrate (Agreement). Plaintiff opposes the motion, arguing that arbitration is barred under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (EFAA). Plaintiff further challenges the Agreement's authenticity and contends the Agreement is unconscionable. Defendants' motion is granted.

"A

written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." (Code Civ. Proc., § 1281.) "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement." (Id. § 1281.2.)

Defendants move to compel arbitration under the Federal Arbitration Act (FAA). The Agreement explicitly states that it is governed by the FAA. [Bunkley Decl. ¶ 19, Ex. A, p. 2.] This is sufficient to invoke application of the FAA to the arbitration agreement. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.) While the FAA governs the rules for conducting arbitration, barring citation to a case precluding California law, motions to compel arbitration are still governed by California law. (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1119; *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 653; *Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477-79; *Victrola 89, supra*, 46 Cal.App.5th at p. 346.)

The law creates a general presumption in favor of arbitration. In a motion to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The burden then shifts to the resisting party to prove by a preponderance of evidence a ground for denial (e.g., fraud, unconscionability, etc.). (*Rosenthal v. Great Western Fin'l Securities Corp.* (1996) 14 Cal.4th 394, 413-14; *Hotels Nevada v. L.A. Pacific Ctr., Inc.* (2006) 144 Cal.App.4th 754, 758.) Any challenges to the formation of the arbitration agreement should be considered before any order sending the parties to arbitration. The trier of fact weighs all evidence, including affidavits, declarations, documents, and, if applicable, oral testimony to determine whether the action goes to arbitration. (*Hotels Nevada, supra*, 144 Cal.App.4th at p. 758.)

The moving party bears the initial burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) This burden may be met “by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature” or “setting forth the agreement's provisions in the motion.” (*Id.* at p. 165.) If the opposing party disputes the agreement, then the burden shifts to the opposing party to produce “evidence to challenge the authenticity of the agreement.” (*Ibid.*) The opposing party can do this by testifying under oath or declaring under penalty of perjury “that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (*Ibid.*) If the opposing party meets its burden, the burden

then shifts to the moving party to “establish with admissible evidence a valid arbitration agreement between the parties.” (Ibid.) “The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Id. at p. 166).

While Defendants have satisfied their initial burden, Plaintiff has also met his burden to challenge the authenticity of the Agreement. Defendants meet their initial burden because they submit a copy of the Agreement containing Plaintiff’s electronic signature. [Bunkley Decl. ¶ 19, Ex. A, p. 7.] The Agreement covers Plaintiff’s claims because it encompasses “any controversy, dispute or claim . . . arising out of, relating to, or regarding the employment relationship,” including “claims for wages and other compensation, claims for breach of contract (express or implied), . . . claims for violation of public policy, wrongful termination, tort claims, claims for unlawful retaliation, discrimination and/or harassment.” [Id. at pp. 1-2.] In response, Plaintiff states in his declaration that he does not recall “being shown, reading, or signing” the Agreement. [Lujan Decl. ¶ 4.] This is sufficient to challenge the authenticity of an electronic signature. (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 846.) The burden therefore shifts to Defendants to prove the existence of the arbitration agreement by a preponderance of the evidence.

Defendants have met their ultimate burden to prove the existence of an agreement to arbitrate Plaintiff’s claims. They submit the declaration of Rollins’ Senior Human Resources Specialist and System Administrator for Onboarding, Kimberly Bunkley,[1] who is “familiar with the new hire/onboarding documents that are provided to new hires/employees at the outset of their employment process, as well as the process and procedure for employees’ receipt, review, acknowledgement, and execution of these new hire documents.” [Bunkley Decl. ¶¶ 1, 4.] Bunkley states that at the time of Plaintiff’s hiring in 2021, the Agreement was distributed to employees through “computer-based electronic platform” UltiPro. [Id. ¶ 5.] Employees would begin the onboarding process on site at their designated branch, and they would access UltiPro through a hyperlink sent to the personal email address provided in their application. [Id. ¶ 7.] Upon clicking the link, they would be prompted to “enter their personal email address as their username and create a unique password for their UltiPro profile.” [Ibid.] They may then begin reviewing and completing the new hire documents. [Ibid.] Importantly, UltiPro “does not allow the employee’s unique password to be shared internally with anyone” and “[n]either the Hiring Manager nor anyone for that matter (except the user his or herself) have the ability to alter, edit,

or delete any of the user's documents or take any actions on the user's behalf." [Id. ¶ 5.] To electronically sign a document, the employee must manually click on the signature line, which then affixes the employee's electronic signature to the document. [Id. ¶ 9.] The UltiPro-generated audit log shows that Plaintiff used his personal email address to view the Agreement on May 18, 2021 at 14:35:01 PM and then electronically signed the document shortly thereafter, "indicating that Plaintiff reviewed and executed the Agreement via UltiPro at the outset of his employment." [Id. ¶ 20, Ex. B.] This evidence is sufficient to show that the electronic signature was "the act of" Plaintiff and Defendants have therefore proven the existence of an agreement to arbitrate the claims. (Ruiz, supra, 232 Cal.App.4th at p. 846.)

Because the Agreement involves arbitration of Plaintiff's unwaivable statutory rights under the FEHA, the attention turns to its compliance with the requirements articulated in *Armendariz v. Foundation Health Psychcare Services*. An agreement to arbitrate FEHA rights is lawful if it: "(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum." (*Armendariz v. Foundation Health Psychcare Services* (2000) 24 Cal.4th 83, 102.)

The Agreement satisfies all the *Armendariz* requirements. It requires arbitration "before a single neutral arbitrator" and provides for multiple forms of discovery such as "interrogatories, document requests, requests for admission and depositions." [Bunkley Decl. ¶ 19, Ex. A, pp. 3-4.] The arbitrator's award "shall be in writing, with factual findings, reasons given, and evidence cited to support the award" and the arbitrator has the authority to "award any remedy or relief that would have been available to the parties had the matter been heard in court." [Id. at p. 5.] And the Agreement does not require Plaintiff to pay costs unique to arbitration because "[a]ll other incidental costs of arbitration that would not be incurred in a court proceeding shall be borne by the Company." [Id. at p. 6.] Contrary to Plaintiff's claims, the 6-month discovery window, the requirement of a hearing within 90 days of the close of discovery, and the ability to move for summary judgment within 60 days of the arbitrator's selection provides sufficient time for Plaintiff to investigate and pursue his claims consistent with the streamlined nature of arbitration. [Id. at pp. 4-5.] That the Agreement forbids

the arbitrator to “invoke and/or rely upon concepts beyond the particular law upon which the claim or counterclaim is based,” does not strip Plaintiff of “settled adjudicative doctrines,” especially considering the arbitrator is required to apply “the applicable substantive law.” [Id. at p. 5.] The Agreement thus meets all Armendariz requirements.

The Court next considers Plaintiff’s defenses to enforcement of the Agreement. Plaintiff argues that the Agreement is unconscionable and that the EFAA bars arbitration of his claims.

Unconscionability claims have both a procedural and substantive element. (Stirlen v. Supercuts, Inc. (1997) 51 Cal.App.4th 1519, 1531.) “Procedural unconscionability” concerns the manner in which the contract was negotiated and the circumstances of the parties at that time. (Kinney v. United HealthCare Services, Inc. (1999) 70 Cal.App.4th 1322, 1329.) “The procedural element focuses on two factors: “oppression” and “surprise.” “Oppression” arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice. “Surprise” involves the extent to which the supposedly agreed-upon terms of the bargain are hidden in the prolix printed form drafted by the party seeking to enforce the disputed terms.” (Stirlen, supra, 51 Cal.App.4th at p. 1532.) “Substantive unconscionability” involves contracts leading to “overly harsh” or “one-sided” results. (Ibid.) “[U]nconscionability turns . . . on an absence of justification for it” and therefore “must be evaluated as of the time the contract was made.” (Ibid.)

Even if the Agreement contains some degree of procedural unconscionability due to its adhesive nature (Alvarez v. Altamed Health Services Corp. (2021) 60 Cal.App.5th 572, 591), the Agreement is not substantively unconscionable. Plaintiff’s substantive unconscionability argument relies on the procedural timeframe for discovery, summary judgment, and the arbitration hearing, as well as limits on the arbitrator’s adjudication of claims to applicable law, which the Court has already addressed and rejected in its discussion of the Armendariz requirements. None of these provisions are substantively unconscionable and thus Plaintiff’s unconscionability defense fails.

Plaintiff’s

defense under the EFAA also fails. Under the EFAA, “[n]otwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, . . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C. § 402(a).) A “sexual harassment dispute” is “a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (Id. § 401(4).) “[O]nce properly invoked, the EFAA renders an arbitration agreement unenforceable as to the entire case, not merely the sexual harassment claim.” (*Quilala v. Securitas Security Services, USA, Inc.* (2025) 117 Cal.App.5th 75, 88.)

“To prevail on a hostile work environment claim under FEHA, a plaintiff must show ‘she was subjected to sexual advances, conduct, or comments that were (1) unwelcome [citation]; (2) because of sex [citation]; and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment.’” (*Carranza v. City of Los Angeles* (2025) 111 Cal.App.5th 388, 401.) “Whether conduct is sufficiently severe or pervasive is determined by the totality of the circumstances.” (*Quilala, supra*, 117 Cal.App.5th at p. 86.)

Plaintiff

does not plead a sexual harassment dispute. Plaintiff’s harassment claim rests on alleged harassment he experienced from supervisors due to his brother’s homosexuality. “[H]arassment on the basis of sexual orientation is a form of sexual harassment under FEHA.” (*Decloedt v. Radnet Management, Inc.* (2026) 346 Cal.Rptr.3d 45, 48.) When a plaintiff’s claim is not based on his membership in the protected class but his “association with or advocacy on behalf of protected employees,” he must show that he was personally subjected to harassment because of such association or advocacy. (*Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876-77.) Here, Plaintiff alleges that Caballero and Aguila circulated a photo of his brother to other supervisors in “a mocking and harassing manner” and called employees “gay” and told them they “suck,” but there are no allegations that this conduct was directed towards Plaintiff. [Compl. ¶¶ 27-28.] Even assuming that the mocking connected with the circulation of the photo was directed towards Plaintiff and was because of his brother’s sexual orientation, this single, isolated incident is insufficient to allege severe or pervasive conduct. (*Quilala, supra*, 117

Cal.App.5th at p. 86 [“[S]imple teasing, offhand comments, and isolated incidents (unless extremely serious)’ are not sufficient to create an actionable claim of harassment”].) Plaintiff has therefore failed to sufficiently allege a sexual harassment dispute and thus the EFAA is no bar to arbitration of his claims.

Defendants’

motion is therefore granted. Consistent with the terms of the Agreement, all of Plaintiff’s non-PAGA claims are to be arbitrated. [Bunkley Decl. ¶ 19, Ex. A, p. 2.] Plaintiff and Defendants to participate in arbitration.

“If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.) The action is stayed.

Defendants to give notice.

[1] Plaintiff objects that Bunkley’s declaration omits the year of execution, only providing that it was executed “this 6th day of February.” [Bunkley Decl. at p. 7.] However, Bunkley submitted a supplemental declaration clarifying that the year “2026” was inadvertently omitted and the Court finds this sufficient to cure the defect. [Bunkley Suppl. Decl. ¶¶ 2-4.]